

Courtroom Clerk's Session

20. 1:30 PM CASE NUMBER: N25-0829
CASE NAME: DUONG ESTUARY COVE, LLC VS. CONTRA COSTA COUNTY
HEARING IN RE: PETITION FOR WRIT OF MANDATE
FILED BY:

TENTATIVE RULING:

The Court rules on Petitioner Duong Estuary Cove, LLC's petition for writ of mandate against Contra Costa County as follows:

Background

Petitioner plans to build a housing project with 271 dwelling units in an unincorporated portion of Oakley.

Petitioner submitted a preliminary application on September 25, 2023. (AR 624.) The application stated that it would have 209 market rate units and 62 moderate income units. (AR 626.) It also stated that it was intended to be a builder's remedy project, noting that it would provide 20 percent of its units for lower income households. (AR 633.)

Respondent sent a notice of incomplete application on October 24, 2023, identifying certain information needed for the preliminary application. (AR 695.) Petitioner submitted updated information on October 26, 2023. (AR 742.) Respondent sent a notice of complete preliminary application on November 2, 2023, and attached agency comments on the project. (AR 752.)

The County housing element was not in substantial compliance with the State Housing Element Law for most of 2023. The County adopted a new general plan housing element on December 12, 2023. (Respondent's RJN C and Petitioner's RJN A-3.) The state found that the County was in substantial compliance with the State Housing Element Law on January 22, 2024. (Respondent's RJN D and Petitioner's RJN A-4.)

Petitioner submitted a full application for a subdivision and development plan on April 19, 2024. (AR 988.) Petitioner also responded to the agency comments provided in October 2023. (AR 989.)

Respondent issued a notice of incomplete application on May 17, 2024, listing eleven items that were incomplete. (AR 1595.) The notice also attached additional comments, including an email stating that the Builder's Remedy did not apply because there were not enough below market-rate units. (AR 1631.)

Petitioner resubmitted the planning application, with additional responses on August 22, 2024. (AR 1663, 1665.) In Petitioner's resubmittal letter and accompanying letter by their attorney, Petitioner took the position that there was only one permitted checklist and that the County was requesting items beyond the checklist. Petitioner also took the position that it was providing the

necessary 20% lower-income units to use the Builder's Remedy. (AR 1665-1670, 2152-2157.)

Respondents issued a second notice of incomplete application on September 20, 2024. (AR 2158.) Respondent explained that there were multiple applicable checklists and identified the incomplete areas of the application. (AR 2159, 2161.) Respondent stated its position that the Builder's Remedy did not apply here.

Petitioner submitted a response to this letter on November 12, 2024. (AR 2225.) The County responded with a third notice of incomplete application on December 11, 2024. (AR 2194.) Petitioner sent a letter appealing the County's third incompleteness determination on December 23, 2024. (AR 2236.)

The County's Planning Commission heard the appeal on February 12, 2025. (AR 591-623, 2244.) The Planning Commission denied the appeal. (AR 1.) Petitioner sent a letter appealing this denial on February 21, 2025. (AR 2246.) On March 7, 2025, the County responded that the Planning Commission's decision was final and was not appealable to the Board of Supervisors. (AR 2267.) This case followed.

Petitioner filed a petition for writ of mandate under both Code of Civil Procedure sections 1085 and 1094.5. The petition was filed against Contra Costa County, Contra Costa County Board of Supervisors, Contra Costa County Planning Commission and the Contra Costa County Department of Conservation and Development (together Respondent)

The petition includes the following causes of action: (1) administrative writ claim for violation of the HAA for not following the Builder's Remedy rule; (2) traditional writ claim for the failure to hold an appeal hearing before the Board of Supervisors within the required 60-day time period based upon Government Code section 65943(c); (3) traditional writ claim under the PSA for finding the application incomplete based upon items not included in the main checklist; (4) an administrative writ claim under the PSA for finding the application incomplete based upon items not included in the main checklist; (5) a traditional writ claim under the HAA for failure to follow the timelines for a completeness determination; (6) administrative writ claim under the HAA for failure to follow the timelines for a completeness determination; (7) a traditional writ claim for violation of the Subdivision Map Act, including Respondent's decision that the Builder's Remedy did not apply and (8) a claim for declaratory relief.

Standard of Review

A traditional "writ of mandate will issue to 'compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station' (Code Civ. Proc., § 1085, subd. (a)), 'where there is not a plain, speedy, and adequate remedy, in the ordinary course of law' (Code Civ. Proc., § 1086)." (*Ochoa v. Anaheim City School Dist.* (2017) 11 Cal.App.5th 209, 223.) "What is required to obtain writ relief is a showing by a petitioner of '(1) A clear, present and usually ministerial duty on the part of the respondent ... ; and (2) a clear, present and beneficial right in the petitioner to the performance of that duty" [Citation.] (*Ochoa, supra*, 11 Cal.App.5th at 223.)

For a traditional writ of mandate under section 1085, "[t]he trial court reviews the challenged

administrative action to determine whether it was arbitrary, capricious, or entirely lacking in evidentiary support, or whether the agency failed to follow the procedure and give the notices the law requires. [Citation.]” (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 484-485.)

For an administrative writ under section 1094.5, the standard of review is “ ‘ “whether the respondent has proceeded without, or in excess of, jurisdiction; whether there was a fair trial; and whether there was any prejudicial abuse of discretion. Abuse of discretion is established if the respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence.” ... (Code Civ. Proc., § 1094.5, subd. (c).)’ [Citation.]” (*Schmid, supra*, 60 Cal.App.5th at 483-484.)

“To the extent the administrative determination rests on the agency’s interpretation or application of an ordinance, it presents a question of law which we review independently. [Citation.]” (*Colony Cove Properties, LLC v. City of Carson* (2013) 220 Cal.App.4th 840, 866.) “[A]n agency’s view of the meaning and scope of its own ordinance is entitled to great weight unless it is clearly erroneous or unauthorized. [Citations.]” (*Friends of Davis v. City of Davis* (2000) 83 Cal.App.4th 1004, 1015.)

Legal Background

“Each city and county in California must have a general plan for its physical development (Gov. Code, § 65300) and local land use decisions, including zoning ordinances, must be consistent with it. (*Id.*, § 65860, subd. (a); *Fonseca v. City of Gilroy* (2007) 148 Cal.App.4th 1174, 1182.) In turn, land use permits must be consistent with a site’s zoning. (*Land Waste Management v. Contra Costa County Bd. of Supervisors* (1990) 222 Cal.App.3d 950, 959.)” (*Save Lafayette v. City of Lafayette* (2022) 85 Cal.App.5th 842, 850.)

The Housing Accountability Act (HAA) “established limited exceptions to these general rules.” (*Ibid.*) “The HAA provides that when a proposed housing development complies with objective general plan, zoning, and subdivision standards and criteria in effect *at the time the application is deemed complete*, the local agency may disapprove the project or require lower density only if it finds the development would have specific adverse effects on public health or safety that cannot feasibly be mitigated. [Citations.]” (*Ibid.*)

The HAA includes a provision known as the Builder’s Remedy. The Builder’s Remedy allows a developer to submit a housing development plan (with certain amounts of low or moderate-income housing) that is inconsistent with the general plan and zoning requirements. The Builder’s Remedy is only available while the local agency is not compliant with the housing element. (Gov. Code §65589.5(d)(5).) In order to take advantage of the Builder’s Remedy, developers can submit a preliminary or complete application to vest the right to proceed under the Builder’s Remedy. (Gov. Code §§ 65941.1, 65943.) Once an application containing all the information set forth in Government Code section 65941.1 is submitted a project is subject only to those “ordinances, policies, and standards adopted and in effect” when the preliminary application was submitted. (Gov. Code § 65589.5(o)(1).)

The Permit Streaming Act (PSA) addresses processes for permitting housing and other

development projects. (Gov. Code § 65920 et seq.) The PSA “requires public agencies to specify up front what information an applicant for a development project must supply, and then the agency must review applications for completeness within 30 days of receiving them. (Gov. Code, §§ 65940, subd. (a)(1), 65943, subd. (a).) The PSA requires an agency to notify an applicant what information, if any, is missing, and then the process iterates if the applicant provides further information. ‘Upon receipt of any resubmittal of the application, a new 30-day period shall begin, during which the public agency shall determine the completeness of the application.’ (Gov. Code, § 65943, subd. (a).) If the agency does not determine in writing within 30 days whether an application for a development project is complete, ‘the application shall be deemed complete.’ (*Ibid.*) And whether an application is complete for purposes of the PSA is also relevant under the HAA, which incorporates by reference the PSA’s definition of a complete application. (See Gov. Code, § 65589.5, subd. (h)(5).)” (*Save Lafayette, supra*, 85 Cal.App.5th at 851.) The PSA also sets forth time limits for an agency to decide an appeal by the project applicant. (Gov. Code § 65943 (c).)

Analysis

1. HAA: Builder’s Remedy (causes of action one and six)

Petitioner challenges Respondent’s finding that the Builder’s Remedy does not apply to this project under both traditional and administrative writs. The Builder’s Remedy is found in the HAA and “[a]ny action brought to enforce the provisions of this section shall be brought pursuant to Section 1094.5 of the Code of Civil Procedure”. (Gov. Code, § 65589.5 (m)(1).) Thus, the Court reviews this argument under the administrative writ standard.

Petitioner’s preliminary application was found to be complete on November 2, 2023. (AR 752.) At that time, Respondent was out of compliance with the State Housing Element Law. Respondent came into compliance on January 22, 2024. (Respondent’s RJN D and Petitioner’s RJN A-4.) Petitioner submitted a full application for a subdivision and development plan on April 19, 2024. (AR 988.).

In order to use the Builder’s Remedy, Petitioner needs to show that the preliminary application submitted on November 2, 2023, was sufficient to trigger the Builder’s Remedy.

The Builder’s Remedy applies to housing development projects for “very low, low-, or moderate-income households, or an emergency shelter.” (Gov. Code 65589.5(d).) In 2023, “Housing for very low, low-, or moderate-income households” means that either (A) at least 20 percent of the total units shall be sold or rented to lower income households, as defined in *Section 50079.5 of the Health and Safety Code*, or (B) 100 percent of the units shall be sold or rented to persons and families of moderate income as defined in Section 50093”. (Gov. Code section 65589.5(h)(3).)

In Petitioner’s preliminary application, it stated there would be 209 market rate units and 62 moderate income units. There were no low, very low or extremely low units indicated. (AR 626.) The page before explained that Petitioner wanted to take advantage of the Builder’s Remedy. (AR 625.) There were several other references in the preliminary application to Petitioner’s intention of complying with SB 330 and using the Builder’s Remedy.

In Respondent’s notice of incomplete preliminary application and its notice of complete preliminary application, Respondent included agency comments. One such comment was an October

18, 2023 email that explained the project did not qualify as a Builder's Remedy project because the necessary amount lower-income housing was missing. (AR 720, 771.) The email notes that Petitioner needs to include twenty percent lower-income housing or one hundred percent moderate-income housing. (AR 720, 771.)

When Petitioner submitted the full application on April 19, 2024, it included responses to many of the agency comments from 2023. (AR 989-1012.) Despite commenting on other sections, Petitioner did not comment on this portion of the Builder's Remedy analysis. (AR 1006.) Farther down, Petitioner responded that it intended to qualify for the Builder's Remedy, "we intend to satisfy via [County Ordinance section] 822-4.406(d): Dual Developers, one affordable and one market rate." (AR 1007.)

On May 17, 2024, the County issued a notice of incomplete application. The notice stated that the project must comply with the County's general plan. (AR 1595.) While this section did not specifically reference the Builder's Remedy issue, requiring consistency with the general plan is not permitted where the Builder's Remedy applies. Within the attachments to the notice was a May 14, 2024, email discussing the Builder's Remedy and the lack of lower-income housing units. (AR 1631.)

On August 22, 2024, Petitioner responded to the Builder's Remedy issue, by stating that "The Project is providing an overall 23 % affordable units being the 62 duplexes. All the units will be at the "lower-income" household AMI as defined under the SB330 Builders Remedy criteria." (AR 1667, although dated August 17, the document was received by the County on August 22.) On August 28, 2024, Petitioner's attorney confirmed that the project includes "20% of the units [which] will be deed-restricted to lower income households." (AR 2152, see also AR 2155-2156.)

Respondent argues that the preliminary approval did not meet the requirements of a Builder's Remedy project. Under the PSA in order to use the regulations that existed at the time of the preliminary application, Petitioner had 180 days to submit a complete application (Gov. Code 65941.1(e)(1)) and then another 90 days to provide additional material (Gov. Code 65941.1(e)(2).)

Here, the preliminary application was found to be complete November 2, 2023. The 180 day time period expired on April 30, 2024. Respondent's notice of incomplete application was dated May 17, 2024, and the additional 90 days expired on August 15, 2024. Petitioner did not clearly state that there would be 23% lower-income housing units until after August 15, 2024.

Petitioner acknowledges that it checked the wrong box on the preliminary application, but points out that it repeatedly stated the project was a Builder's Remedy project. Thus, Petitioner argues that the Respondent knew Petitioner's project would include the necessary lower-income housing because that is what is required for a Builder's Remedy project. The Court does not find this argument persuasive.

It seems likely that Petitioner's failure to state that twenty-three percent housing will be lower-income until August 2023 was an oversight or mistake by Petitioner. Petitioner's response to the Builder's Remedy issue on April 19, 2024, suggests that it was considering the wrong issue. At the hearing before the Planning Commission, Petitioner's attorney noted that the wrong box was checked due to a scrivener's error. (AR 609.)

The Builder's Remedy applies when (1) the agency lacks a compliant Housing Element at the time the preliminary application is completed (and continuing for the time period specified in the

PSA, Gov. Code section 65941.1) and (2) the project qualifies as housing for very low, low-, or moderate-income households under §65589.5(d). But here, the project did not include the required amount of low-income housing until August 22, 2024. Respondent was in compliance with the Housing Element at that time. Thus, in order to use Respondent's history lack of compliance with the housing element, Petitioner needed to meet the time limits under the PSA. However, the 90 day response period expired on August 15, approximately 7 days before Petitioner first identified its project as a Builder's Remedy project.

The Court finds that the Builder's Remedy does not apply to this project under either a traditional or an administrative writ standard. Therefore, Petitioner's causes of action one and six are denied.

2. PSA: Checklist Requirements (causes of action three and four)

Petitioner challenges Respondent's decision to find the full application incomplete under the PSA. While brought as both a traditional and administrative writ, the challenge here is properly brought as an administrative writ. Thus, the Court's review is focused on whether there is substantial evidence to support the agency's findings of incompleteness.

Under the PSA, cities and counties must "compile one or more lists that shall specify in detail the information that will be required from any applicant for a development project." (Gov. Code § 65940.) Within 30 days, the agency must let the project application know if their application is complete. "If the application is determined to be incomplete, the lead agency shall provide the applicant with an exhaustive list of items that were not complete. That list shall be limited to those items actually required on the lead agency's submittal requirement checklist." (Gov. Code, § 65943 (a).)

Once a project is deemed complete, the agency may still review the application for substantive issues, but the agency may not request new or additional information which is not specified in section 65940 (providing a list of state mandated information). (Gov. Code § 65944(a).)

Petitioner argues that Respondent's May 17, 2024 notice of incompleteness included items on the incomplete determination that were not required by the County's checklist. Thus, Petitioner argues that the application must be deemed complete as of May 19, 2024 (30 days after the application was submitted) because there was no reason to find the application incomplete. (Gov. Code § 65943(a)).

Petitioner argues that there was only one checklist, yet the County requested information from multiple checklists. Petitioner argues that the only allowed checklist is the application submittal checklist (AR 2838, 2157.) Respondent points to the record, which shows that there was a County application webpage that included links to both the general planning application checklist and the inclusionary housing plan checklist. (AR2825-2837.) The Court finds that Respondent was permitted to include multiple checklists, and that these checklists were available from the County's website. While the inclusionary housing plan checklist was not specifically mentioned in the section on "What Documents Should Be Included?" (AR2795-96), a link to the housing plan checklist was available further down the same webpage (AR 2797). Further, the need for an inclusionary housing plan checklist was included in communications regarding the preliminary application, including in the

notice of complete preliminary application. (AR 773, 774.) Thus, under the PSA, Respondent was permitted to require information on the inclusionary housing plan checklist.

The record shows that the County updated its website to move the location of the link to the inclusionary housing checklist, along with links to other special projects by May 2024. (AR 2831-2837.) The fact that the County updated its website does not show that the prior version of the website was insufficient or failed to comply with the multiple checklists option in the PSA.

Petitioner argues that the first item was not properly included because of the Builder's Remedy and that the remaining items were not included in the checklist, including the rationale for building heights, specific parking dimensions for a public park, and clarification on the source of water supply. Further, Petitioner argues that the County engaged in a substantive review of the project, which goes beyond the scope of the completeness determination required by the PSA.

a. Substantive Review of Items

The agency provides its analysis and determination of whether the project is consistent with the "objective general plan, zoning, and subdivision standards and criteria, including design review standards" after the project application is determined to be complete. (Gov. Code § 65589.5(j).) Further, the PSA contemplates that additional information will be provided to the agency after the application is determined complete. "The agency may, in the course of processing the application, request the applicant to clarify, amplify, correct, or otherwise supplement the information required for the application." (Gov. Code § 65944(a).) The PSA also allows for additional information as required by CEQA. (Gov. Code § 65944(c).)

Petitioner argues that Respondent went beyond requiring items for a checklist and engaged in a substantive review of the application. Whereas, Respondent argues that it was entitled to ask clarifying questions and requesting additional information that was part of its checklists.

Here, the May 17 notice of incompleteness includes both reasonable requests for clarification and/or additional information and it includes substantive analysis of the project's consistency with the general plan and other applicable standards.

The first incomplete item on the list discusses that the project is not consistent with the general plan and that a general plan amendment is required. (AR 1595.) While these may be accurate statements, the general plan amendment was not included in Respondent's checklists and the finding that the project is not consistent with the land use designation is a substantive review of the project. (Of course, if the Builder's Remedy is found to apply then consistency with the general plan would not be required.)

The second incomplete item notes that the project identified Diablo Water District as its water supply, but that the County records do not identify the project site as being served by the water district. (AR 1596.) While this may be a valid concern, water supply is not an item included in the Application Submittal Checklist or the Inclusionary Housing Checklist. Further, it appears that this item included a consideration of whether Petitioner's statement regarding its water source was

accurate, as opposed to included.

The ninth incomplete item requests a reasoning for the height of some single-family residences and asks that Petitioner consider lowering the height to be consistent with development in the area. (AR 1595.) As with the other items, it may be reasonable for the County to raise concerns about the height of the buildings, but it is not an item that can be considered incomplete.

The remaining items of incompleteness do not include substantive analysis and are addressed below.

b. Estoppel

Petitioner argues that the County is estopped from denying the applications completeness because it engaged in a detailed substantive processing of the project. Petitioner points to Government Code section 65944, which allows the agency to request some supplemental and clarifying information after the completeness determination. This section, however, does not address estoppel. Further, Petitioner cites no case law to support this argument. Petitioner has not convinced the Court that estoppel applies here.

c. Incomplete Items Analysis

Item 3 requests information on the locations of trees, and the Application Submittal Checklist includes several requests for information on trees. Thus, this item was properly identified as an incomplete item.

Item 4 requests clarification as to the total acres of the property, noting that the county records show the property at 77.41 acres, but the application lists the property at 78.33 acres. It's not clear that this analysis constitutes a substantive determination. Still, the checklist does not require that the total acres for the project be consistent to the acres in the country records. While obtaining clarification on the total acres is a reasonable request, the Court finds that this was not a valid reason to find the project application incomplete.

Item 5 requests clarification on the setback information. Respondent noted that the setback information included with the plans was inconsistent and requested clarification. Respondent noted that "Sheet C1.0 states the rear yard setback for single-family detached is 15 feet. However, Sheet C3.0 indicates a 10-foot rear yard." (AR 799, 802.) The application submittal checklist requires a site plan that shows "Existing and proposed building/structures/uses clearly labeled with setbacks". Here, the Court has reviewed the sheets and finds that setback information for the single-family homes is inconsistent, listing both 10 and 15 feet. Further, the Court finds that since setback information was specifically included in the Checklist, Respondent could find the setback information was incomplete due to the internal inconsistency within the application.

As to item 6, Respondent requested details on the parking area for the public parks, which had not indicated what parking would be used for the parks. (AR 1693.) The Application Submittal Checklist requires "dimensioned parking spaces" and thus, the Court finds that the failure to address parking spaces for the park meant that the application was incomplete as to the dimensioned parking

spaces. The need for information on parking for the park was also identified in the second incomplete notice (AR 2161.)

As to item 7, Respondent requested the width between parking spaces on Street F on Sheet C3.4. (AR 1596, AR 806.) This information is required by the Checklist as either being part of the traffic circulation plan or the dimensioned parking spaces. In either event, it was permissible for Respondent to require this information for its completeness determination.

As to item 8, Respondent noted that there was confusion regarding the location of easements on the property. The Checklist requires showing as existing / proposed right-of-ways and thus, it was permissible for Respondent to require this information for its completeness determination.

As to item 10, Respondent requested additional information on the monument signs. The Checklist requires site plans and details regarding the signs. Thus, it was permissible for Respondent to require this information for its completeness determination.

As to item 11, Respondent requested additional information on who will own and maintain the parks and trail. (AR 1597-98.) Information regarding public parks, including maintenance plans, is not an item included on the checklists. Therefore, the Court finds that this was not a valid reason to find the project application incomplete.

As to item 12, Respondent noted that there were agency comments attached to the letter and requested that Petitioner review and comment on them. The attached comments from other agencies, including noting the need for an inclusionary housing plan. (AR 1631-1632). The record shows that Petitioner did not include an inclusionary housing plan, which is required by the inclusionary housing plan checklist. Thus, it was permissible for Respondent to require an inclusionary housing plan for its completeness determination

The Court finds that Respondent was entitled to identify items 3, 5, 6, 7, 8, 10 and 12 as incomplete under the PSA. The other incomplete items included in the May 17, 2024, notice violated the PSA and thus, constituted an abuse of discretion.

d. Was Petitioner Prejudiced?

The next issue before the Court is whether there is a consequence to finding an application incomplete under the PSA where some, but not all, of the finds were legally correct. Stated another way, a writ will only issue if there was a *prejudicial* abuse of discretion. Where a notice of incompleteness includes both legally permissible items and additional items that are impermissible, what is the consequence?

Petitioner argues that because the May 17, 2024 notice failed to identify any valid checklist deficiencies, it was ineffective to stop the statutory clock, citing to *Orsi v. City of Salinas* (1990) 219 Cal.App.3d 1576, 1586. *Orsi* is distinguishable as there the agency failed to timely provide a notice of incompleteness, which by law meant that the application was deemed complete. Here, Respondent timely provide a notice of incompleteness.

Petitioner has the burden in a writ brought under the PSA and as such, it is Petitioner's

burden to convince the Court a notice of incompleteness that included some legally correct incomplete items should nevertheless be found to be a violation of the PSA. Petitioner has not cited authority supporting that argument. The Court is not convinced that a partially compliant notice by Respondent should be disregarded in its entirety.

Therefore, while the Court finds that certain items cannot be used in the incompleteness determination, the Court denies the request to find that the May 17 notice was invalid.

e. Second and Third Notices

Petitioner points out that Respondent is limited to the incomplete items raised in the first notice and cannot raise new incomplete items in the second and third notice. (AR 2158-2190; 2191-2224.) Government Code section 65943(a) states that once the initial incompleteness list is provided “the local agency shall not request the applicant to provide any new information that was not stated in the initial list of items that were not complete.” (Gov. Code, § 65943 (a).) Petitioner is correct that the Respondent may not include new items. However, Petitioner has not shown what new items were included in the second and third notices.

Further, the second and third notices contained at least some of the same incomplete items that the Court finds were properly included in the first notice, including the setback information, parking for the parks and the inclusionary housing plan. Thus, as with the first notice, Petitioner has not shown that the second and third notices should be disregarded if they included incomplete items in violation of the PSA.

3. HAA: timeliness (causes of action five and six)

Once a housing development application is complete, the local agency has 60 days (for projects with more than 150 units) to provide a written explanation if the agency believes that the project is inconsistent with an applicable plan, program, policy, ordinance, standard, requirement, or other similar provision. (Gov. Code § 65589.5 (j)(2)(A).) If the agency fails to provide a written explanation within 60 days, “the housing development project shall be deemed consistent, compliant, and in conformity with the applicable plan, program, policy, ordinance, standard, requirement, or other similar provision” (Gov. Code § 65589.5 (j)(2)(B).)

Respondent did not provide a written document identifying whether the development application was inconsistent with the general plan and related documents. However, the deadline for Respondent to identify such inconsistencies is tied to the date the project application is determined to be complete. (Gov. Code § 65589.5(j)(2)(A).) “[D]etermined to be complete” means that the applicant has submitted a complete application pursuant to Section 65943.” (Gov. Code § 65589.5(h)(10).) Thus, if Petitioner is found to have submitted a complete application under the PSA, the time for Respondent to provide its plan consistency analysis would start to run. Here, Petitioner argues that its project was deemed complete under the PSA as of May 19, 2024 because Respondent’s notice of incomplete application violated the PSA. Petitioner’s argument hinges on a finding that the project was deemed complete as of May 19, 2024, however, as explained above, the May 17 notice included items that were permissible and thus, Respondent provided a timely notice under the PSA. Therefore, project was not deemed complete as of May 19, 2024.

4. *PSA: Appeal Deadline (cause of action two)*

Compliance with the PSA is normally reviewed as an administrative writ. Here, however, the argument is that Petitioner was denied a hearing before the Board, which potentially raises issues in a traditional writ. Therefore, the Court has considered this argument under both traditional and administrative writ standards.

The PSA provides a process and deadlines for appealing the agency's determination that an application is not complete. Government Code section 65943(c) provides in part:

If the application together with the submitted materials are determined not to be complete pursuant to subdivision (b), the public agency shall provide a process for the applicant to appeal that decision in writing to the governing body of the agency or, if there is no governing body, to the director of the agency, as provided by that agency. A city or county shall provide that the right of appeal is to the governing body or, at their option, the planning commission, or both.

There shall be a final written determination by the agency on the appeal not later than 60 calendar days after receipt of the applicant's written appeal. The fact that an appeal is permitted to both the planning commission and to the governing body does not extend the 60-day period. Notwithstanding a decision pursuant to subdivision (b) that the application and submitted materials are not complete, if the final written determination on the appeal is not made within that 60-day period, the application with the submitted materials shall be deemed complete for the purposes of this chapter.

(Gov. Code § 65943 (c).)

Petitioner filed its appeal on December 23, 2024. (AR 2236.) Petitioner argues that the statutory 60-day deadline for a final determination was February 21, 2025. Here, the County's Planning Commission issued a written ruling on February 12, 2025. (AR 1.) Petitioner attempted to appeal the Planning Commission's decision on February 21, 2025 (AR 2246), which was the deadline for a final written determination by the County. The County denied this appeal to the Board of Supervisors. (AR 2267.)

The Planning Commission's decision was within the 60-day time limit, however, Petitioner argues that it was entitled to a hearing before the Board of Supervisors and was denied that hearing. Petitioner argues that since it was entitled to a hearing before the Board and none was provided within the 60 day time limit the project should be deemed complete. Thus, the key question here is whether Petitioner was entitled to appeal the Planning Commission's decision to the Board of Supervisors.

Petitioner relies on Contra Costa County Code sections 26-2.2406 and 26-2.1402(4). (Petitioner's RJN C and Respondent's RJN E.)

Section 26-2.2406 states that "An appellant may appeal a decision of a division of the planning agency, to the appellant division... by filing a written notice of appeal" The section

includes a table showing that decisions by the planning commission are appealed to the board of appeals within 10 days.

Section 26-2.1402 states in part that “The board of supervisors, as the legislative body, shall:... (4) Be the final appellate body on all matters as specified in this chapter.”

Nothing in Chapter 26-2 specifically addresses completeness determinations or the PSA.

Respondent points to section 26.2-2204, which lists the types of hearings included in this chapter and Respondent points out that Section 26-2-2204 does not include a completeness determination pursuant to Section 65943. Thus, Respondent argues that a completeness determination is not a matter specified in this chapter (Chapter 26-2) and therefore, Petitioner did not have the right to appeal to the Board of Supervisors.

Respondent argues that the PSA gives Respondent the option of hearing the appeal before the board or the planning commission or both. Here, Respondent elected to have the planning commission hear and decide the issue. Respondent notified Petitioner that the appeal would be heard by the planning commission and that its decision would be final on December 19, 2024. (AR 2233.)

Respondent also points out that the appeal timelines in Chapter 26-2 are longer than those contemplated by the PSA, including 45 days for the planning commission to provide a written decision and 90 days for the Board to provide its written decision. (26-2.2210.)

Here, the PSA states that an appeal of the completeness determination is heard by “the governing body [the Board] or, at [the County’s] option, the planning commission, or both.” On December 19, 2024, the County notified Petitioner that the hearing would be before the Planning Commission and the hearing would be final. Thus, the County exercised its option to have the appeal heard by the Planning Commission.

Petitioner argues that Chapter 26-2 must apply here because that Chapter creates the Planning Commission and gives it its authority. And further, section 26-2 creates a system where the Board is the final appellate body for all matters specified in this Chapter. (Chapter 26-2.1402.)

While Petitioner’s argument has some logic, it does not address the language in the PSA that states the County may decide whether the appeal goes to the board or the planning commission. In reply, Petitioner argues that “[t]he phrase ‘at their option’ describes how a county initially structures its appellate framework through legislation. It gives the county a choice when establishing its code: route appeals to the governing body, to the planning commission, or both. It does not create a roving authority for staff to route appeals after the legislative choice has been made.” (Reply p. 9-10.) But Petitioner provides no legal citations for this position. Therefore, the Court does not find Petitioner’s interpretation of the PSA “at their option” language persuasive.

Instead, the Court finds that the PSA permits the County to decide whether the appeal of the completeness determination should be made to the Board, the planning commission or both on a case by case basis. Here, the County notified Petitioner of its decision before Petitioner file the appeal and thus, the County clearly exercised its option.

The Court notes, however, that it would provide clarity for the County's Ordinance to address how and when such an election is made, but the Court cannot find that the County erred in this case.

5. Subdivision Map Act (cause of action seven)

Petitioner did not address its subdivision map act claim until reply, which waives the argument. Further, the argument is based upon the main theories of violations of the PSA and HAA and without those violations, Petitioner cannot show the SMA was violated.

6. Declaratory Relief (cause of action eight)

Respondent argues that the declaratory relief claim is derivative of the writ claims and fails for the same reason the writ claims fail. In reply, Petitioner appears to concede that the declaratory relief claim is based upon the same theory as the writ claims. Since this Court finds that the writ claims fail, the Court finds that the declaratory relief claim also fails.

Judicial Notice

The Court grants Petitioner's requests for judicial notice as to exhibits A, C, D and F. The Court denies Petitioner's requests for judicial notice as to exhibits B and E as these documents were not in existence at the time Petitioner's application was considered.

The Court grants Respondent's requests for judicial notice as to exhibits A to E.

Conclusion

Petitioner's writ claims, causes of action one through seven are denied. Further, the Court finds that Petitioner has not shown that it will prevail on its declaratory relief claim, and that claim is hereby dismissed.